

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 17, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, SEPTEMBER 17, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, SEPTEMBER 16, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. JCCP5336 TOPGOLF PAYROLL WAGE AND HOUR CASES

Case Management Conference

The case management conference is continued to **Thursday, December 17, 2026, at 8:30 a.m. in Department 3**. The parties shall file a joint case management conference statement seven days before the hearing.

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2. M-CV-0080611 CAPITAL ONE BANK v. MONKS, EDWIN

Plaintiff's Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement

Preliminary Matters

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$2,050.00 in unpaid principal plus \$517.00 in court costs for a total judgment entered of \$2,567.00.

3. M-CV-0084851 AMERICAN EXPRESS NAT'L v. CANTWELL, TAYLOR

Plaintiff's Motion to Vacate the Conditional Dismissal and for Entry of Judgment Pursuant to Code of Civil Procedure Section 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$8,354.69 in unpaid principal plus \$510.00 in court costs for a total judgment of \$8,864.69.

4. M-CV-0085391 CAPITAL ONE v. PERRY, MALCOLM

Plaintiff's Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement

Preliminary Matters

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$2,750.00 in unpaid principal plus \$333.50 in court costs—as established by the memorandum of costs filed with the court—for a total judgment entered of \$3,083.50.

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5. M-CV-0091100 AMERICAN EXPRESS NATIONAL V. RODE, TERESA

Plaintiff's Motion to Enter Judgment Pursuant to CCP § 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$13,875.08 in unpaid principal plus \$586.01 in court costs for a total judgment of \$14,461.09.

6. M-CV-0096239 ROCKLIN SIERRA APT II V. TATE, TREYVON

Status Conference re: Appointment of Counsel

Appearances of the parties are required at the hearing.

7. M-CV-0096921 MIDLAND CREDIT MANAGEMENT v. LAGIER, LES

Defendant's Motion to Compel Binding Arbitration and Stay Proceedings

Defendant moves to compel plaintiff to arbitration.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then "bears the burden of proving by a preponderance of the evidence any fact necessary to its defense" including evidence challenging the

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acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets his initial burden that an agreement to arbitrate exists between plaintiff and defendant that involves interstate commerce. As such, the burden shifts to plaintiff.

Plaintiff does not oppose the motion to compel arbitration and thus does not meet its burden to establish any defenses.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant’s motion to compel arbitration is granted. The action shall be stayed pending completion of the arbitration. The court schedules this matter for an Order to Show Cause re status of arbitration on **Thursday, February 18, 2027, at 9:00 a.m. in Department 3.**

8. M-CV-0098090 HOLO I MUA v. DANILEO ENTERPRISES

Plaintiff’s Motion for Summary Judgment Against Defendant Silvio Praseli

Appearances of the parties are required at the hearing.

9. M-CV-0098241 DEMAYO, DANIEL v. MILTON, JASON

This tentative ruling is issued by the **Honorable Albert A. Erkel**. If oral argument is requested, it shall be heard on September 23, 2026, at 8:30 a.m. in Department 4.

Defendant’s Motion to Set Aside Default and Default Judgment

On August 19, 2026, the court held a trial on plaintiff’s unlawful detainer complaint. Defendant did not appear. The court thereafter entered judgment in favor of plaintiff and against defendant.

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On September 1, 2026, the court granted defendant's ex parte application to stay the proceedings pending the hearing on his motion to set aside. The court's order indicated defendant must serve a copy of the court's order on plaintiff and file a proof of service on or before September 4, 2026. Notably, the court indicated that "Failure to timely serve and timely file a proof of service with the court is a sufficient basis for the court to deny defendant's motion."

A review of the court record reveals defendant has not filed proof of service indicating he served plaintiff with a copy of the court's September 1, 2026, order.

Accordingly, defendant's motion is denied.

10. S-CV-0047684 TRIMONT LAND COMPANY v. NORTHSTAR VILLAGE

Case Management Conference

Appearances of the parties are required at the hearing.

11. S-CV-0047732 NORTHSTAR VILLAGE v. CLP NORTHSTAR

Case Management Conference

Appearances of the parties are required at the hearing.

12. S-CV-0052930 HAMMACK, ELIZABETH v. ESTATE JERRY CEPEL

Petition to Confirm Arbitration Award

The petition is granted as prayed. The court confirms the Final Award entered on December 9, 2025, in the amount of \$178,845,995.80, allocated as follows:

- Sierra Pannu: \$20,029,528.75
- Samrath Pannu: \$7,124,235.00
- Sameera Pannu: \$6,233,705.63
- Cyrus Pannu: \$6,233,705.63
- Elizabeth Hammack: \$44,401,194.54
- Emma Hammack: \$11,783,624.35
- James Hammack: \$16,068,620.40
- Katherine Hammack: \$11,783,624.35
- William Hammack: \$11,783,624.35

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- Twila Gainer: \$25,672,273.04
- Breanna Gainer: \$8,865,929.88
- Nicholas Gainer: \$8,865,929.88

Therefore, judgment shall be entered against defendant in the amount of \$178,845,995.80. The court additionally awards plaintiffs post judgment interest at the legal rate of 10% per annum from the date of judgment until paid in full.

13. S-CV-0053861 MELTZER, BONNIE v. ROSEVILLE THEATRE ARTS

The motion to compel further deposition is dropped from calendar as no moving papers were filed with the court.

14. S-CV-0054301 LUZZI, JOHN v. LANE, KIMBERLY

The motion for partition instructions is continued to October 15, 2026, at 8:30 a.m. in Department 3.

15. S-CV-0055230 FROLOV ENTERPRISES v. YURTAEV, NIKOLAY

The motion for summary judgment is dropped from calendar as no moving papers were filed with the court.

16. S-CV-0056720 HOLDEN, BREANN v. THE ARC OF PLACER COUNTY

Defendant's Demurrer to Plaintiff's First Amended Complaint

Preliminary Matters

The court observes defendant did not timely file their demurrer as required by Code of Civil Procedure section 1005, subdivision (b). However, this defect was waived by plaintiff opposing the merits of defendant's demurrer. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Nonetheless, the court admonishes defendant to timely file their papers for future filings.

Defendant's requests for judicial notice are granted.

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Ruling on Demurrer

Defendant demurs to the second cause of action for retaliation in violation of Government Code §§ 12940 et seq and third cause of action for failure to prevent discrimination and retaliation in violation of Government Code § 12940(k) in plaintiff's first amended complaint ("FAC") on the grounds the complaint does not allege facts sufficient to state the challenged causes of action. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Second Cause of Action—Retaliation in Violation of Government Code §§ 12940 et seq

To establish a retaliation cause of action, "a plaintiff must show (1) he or she engaged in a "protected activity," (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) Protected activity "takes the form of opposing any practices forbidden by FEHA or participating in any proceeding conducted by the DFEH or the Fair Employment and Housing Council (FEHC)." (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 380.) It may also include "evidence an employer believed the plaintiff was a potential witness in another employee's FEHA action." (*Rope v. Auto-Chlor System of Washington, Inc.* (2013) 220 Cal.App.4th 635, 652, fn. 11; *see also Steele v. Youthful Offender Parole Bd.* (2008) 162 Cal.App.4th 1241, 1252–60.) However, requesting a reasonable accommodation does not constitute protected activity. (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 380.)

Here, when taking the factual allegations in the FAC as true, plaintiff does not allege facts sufficient to state the second cause of action for retaliation in violation of Government Code §§ 12940 et seq. Accordingly, the demurrer is sustained with leave to amend as to the second cause of action.

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Third Cause of Action—Failure to Prevent Discrimination and
Retaliation in Violation of Government Code § 12940(k)

“To state a prima facie case of failure to prevent discrimination or harassment, a plaintiff must allege and show that (i) plaintiff was subjected to discrimination, harassment or retaliation, (ii) which defendant failed to take all reasonable steps prevent, and (iii) which caused plaintiff harm.” (*Ayala v. Frito Lay, Inc.* (E.D. Cal. 2017) 263 F.Supp.3d 891, 905; Gov. Code, § 12940, subd. (k).)

Here, when taking the factual allegations in the FAC as true, plaintiff alleges facts sufficient to state the third cause of action for failure to prevent discrimination and retaliation in violation of Government Code § 12940(k). Accordingly, the demurrer is overruled as to the third cause of action.

In sum, the demurrer is sustained with leave to amend as to the second cause of action and overruled as to the third cause of action.

Defendant’s Motion to Strike Portions of Plaintiff’s First Amended Complaint

Preliminary Matters

The court observes defendant did not timely file their motion to strike as required by Code of Civil Procedure section 1005, subdivision (b). However, this defect was waived by plaintiff opposing the merits of defendant’s motion to strike. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Nonetheless, the court admonishes defendant to timely file their papers for future filings.

Defendant’s requests for judicial notice are granted.

Ruling on Motion

Defendant moves to strike the following in the first amended complaint (“FAC”) on the grounds the complaint does not allege a basis for such allegations or relief. (Code Civ. Proc. §§ 435, 436.):

- References to retaliation, engagement in protected activity, and failure to prevent retaliation in Paragraph 19;
- Paragraph 24 in its entirety;
- Paragraph 34 in its entirety;
- Paragraph 39 in its entirety;
- Paragraph 41 in its entirety;

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- Paragraphs 42-44 in their entirety;
- Paragraph 45 in its entirety;
- Paragraph 46 in its entirety;
- Paragraph 47 in its entirety;
- Paragraph 49 in its entirety;
- Paragraph 50 in its entirety;
- Paragraph 51 in its entirety;
- Paragraph 52 in its entirety;
- Paragraph 53 in its entirety;
- Page 10, Prayer for relief No. 5: “For punitive damages, pursuant to Civil Code §§3294 in amounts sufficient to punish Defendants for the wrongful conduct alleged herein and to deter such conduct in the future.”

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)

Corporate employers can be held liable for punitive damages based on the acts of the employee when “the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (*Id.* at § 3294, subd. (b).)

Defendant’s motion is granted in part with leave to amend as to:

- References to retaliation, engagement in protected activity, and failure to prevent retaliation in Paragraph 19;
- Paragraph 24 in its entirety;
- Paragraph 34 in its entirety;
- Paragraph 46 in its entirety;
- Paragraph 49 only as to references to retaliation;
- Paragraph 52 in its entirety; and

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- Page 10, Prayer for relief No. 5: “For punitive damages, pursuant to Civil Code §§3294 in amounts sufficient to punish Defendants for the wrongful conduct alleged herein and to deter such conduct in the future.”

Defendant’s motion is denied in part as to the remainder of the challenged paragraphs.

Plaintiff shall file and serve an amended complaint on or before **September 28, 2026**.

17. S-CV-0057201 WEBER, ANNE v. WELLS FARGO BANK

The demurrer is dropped from calendar as moot in light of plaintiff filing a first amended complaint with the court.

18. S-CV-0057330 IN RE THE PETITION OF VARDANYAN, SARA

Petition for Approval of Minor’s Compromise Claim

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition, attachments, and supplemental declaration, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

19. S-CV-0057381 GREENHOUSE, GISELA v. MOLLENKOPF, KRISTINE

Defendant’s Special Motion to Strike Plaintiff Gisela Maria Greenhouse’s Complaint Pursuant to C.C.P. § 425.16 (Anti-SLAPP Motion)

Defendant moves to strike the lone cause of action for “Intentional Tort” alleged in plaintiff’s complaint pursuant to Code of Civil Procedure section 425.16.

A motion brought under Code of Civil Procedure section 425.16, also known as an anti-SLAPP motion, is a procedural remedy designed to dispose of lawsuits that are brought primarily to chill the valid exercise of a party’s constitutional right of petition or free speech. (Code Civ. Proc. § 425.16(a); see also *Sylmar Air Conditioning v. Pueblo Contracting Svcs., Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.) In determining whether an action or claim is a SLAPP suit subject to a special motion to strike, the court evaluates first whether the claim arises out of the defendant’s protected speech or petitioning activity, and second whether plaintiff can

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show a probability of success on the merits. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88-89.) Defendant has the burden of proof to show that plaintiff's claims arise from defendant's exercise of free speech or petition rights as defined in Code of Civil Procedure section 425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) "When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) The second step shifts the burden to plaintiffs to establish a probability of prevailing on the claim. (*Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 458-459.) At the second step "the court's responsibility is to accept as true the evidence favorable to the plaintiff [citation] and evaluate the defendant's evidence only to *determine if it has defeated that submitted by the plaintiff as a matter of law*. [Citations.] The trial court merely determines whether a prima facie showing has been made that would warrant the claim going forward." (*Blanchard v. DIRECTV, Inc.* (2004) 123 Cal.App.4th 903, 918 [emphasis in original].)

Defendant argues the "Intentional Tort" cause of action arises from acts by defendant in furtherance of her right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue. Code of Civil Procedure section 425.16(e) further defines "acts in furtherance of a person's right of petition or free speech" as used in section 425.16(b) to include:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

Defendant's motion appears to invoke section 425.16, subdivisions (e)(1) and (2).

In assessing whether the first prong has been met, the court analyzes whether defendant's acts underlying plaintiff's cause of action *itself* was an act in furtherance

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of the right of free speech, not simply whether protected activity took place. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78; *Navellier v. Sletten, supra*, 29 Cal.4th at 89.) Where, as here, subdivision (e)(3) is invoked, defendant must also demonstrate the alleged statements were made in connection with an issue of public interest.

Here, defendant satisfies her burden as to the first prong because she presents evidence the alleged statements to third parties were made to law enforcement and are thus made in connection with an official proceeding authorized by law subject to SLAPP protections. (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941.)

The burden therefore shifts to plaintiff to establish the challenged claim based on the protected activity is legally sufficient and factually substantiated. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) However, plaintiff does not meet her burden as to “Intentional Tort” cause of action.

Accordingly, defendant’s motion is granted without leave to amend.

Defendant may file a separately noticed motion for attorney’s fees. (Code Civ. Proc., § 425.16, subd. (c)(1).)

Defendant’s Demurrer to Plaintiff Gisela Maria Greenhouse’s Complaint

Defendant’s demurrer is overruled as moot in light of the court’s ruling granting defendant’s special motion to strike without leave to amend.

20. S-CV-0057861 IN RE THE PETITION OF WEAVER, LUCAS

Petition for Approval of Minor’s Compromise Claim

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)